Maharashtra State Electricity ... vs Maharashtra Electricity Regulatory ... on 28 August, 2020

Order in Appeal No. 153 of 2019

APPELLATE TRIBUNAL FOR ELECTRICITY AT NEW DELHI

(APPELLATE JURISDICTION)

APPEAL NO. 153 of 2019

Dated : 28th August, 2020

PRESENT: HON'BLE MRS. JUSTICE MANJULA CHELLUR, CHAIRPERSON
HON'BLE MR. S.D. DUBEY, TECHNICAL MEMBER

IN THE MATTER OF :

Maharashtra State Electricity Distribution Co. Ltd.,
Through its Managing Director
5th Floor, Prakashgad,
Bandra (East), Mumbai - 400051. .... APPELLANT

Versus

1. Maharashtra Electricity Regulatory Commission,
Through its Secretary
World Trade Centre,
Centre No.1, 13th Floor, Cuffe Parade,
Colaba, Mumbai - 400005.

2. Adani Power Maharashtra Ltd.,
Represented through its authorized signatory,
"Adani House", Near Mithakali Six Roads,
Navrangpura, Ahmedabad - 380093 .... RESPONDENTS

Counsel for the Appellant(s) : Mr. Ganesan Umapathy
Mr. Aditya Singh
Counsel for the Respondent(s) : Mr. Pradeep Misra for R-1

Mr. Amit Kapur
Mr. Sourav Roy for R-2

ORDER

PER HON'BLE MRS. JUSTICE MANJULA CHELLUR, CHAIRPERSON In this Appeal, the conditions of EC, facts and circumstances are similar to that of Appeal No. 21 of 2019 (Talwandi Sabo Power Limited Vs. Punjab State Electricity Regulatory Commission & Anr.) and Appeal No. 73 of 2019 (Nabha Power Limited Vs. Punjab State Electricity Regulatory Commission & Anr.). Therefore, the instant Appeal is disposed of in terms of the Judgment in Appeal Nos. 21 & 73 of 2019 dated 28.08.2020 upholding the impugned order passed by Respondent No.1-MERC.

2. Registry is directed to keep a copy of the Judgment in Appeal Nos. 21 of 2019 & 73 of 2019 in the instant Appeal also along with this order.

3. No order as to costs.

4. Pending IAs, if any shall stand disposed of.

5. Pronounced in the Virtual Court on this, the 28th day of August 2020.

(S.D. Dubey)
Technical Member

(Justice Manjula Chellur)
Chairperson

REPORTABLE / NON-REPORTABLE
ts/tpd